

# HOUSE . . . . . No. 3447

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## The Commonwealth of Massachusetts

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PRESENTED BY:

***Brian M. Ashe***

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*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to containers, litter, ecology and nips (CLEAN Act).

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PETITION OF:

| NAME:                         | DISTRICT/ADDRESS:     | DATE ADDED:       |
|-------------------------------|-----------------------|-------------------|
| <i>Brian M. Ashe</i>          | <i>2nd Hampden</i>    | <i>1/15/2025</i>  |
| <i>Francisco E. Paulino</i>   | <i>16th Essex</i>     | <i>1/15/2025</i>  |
| <i>Patrick Joseph Kearney</i> | <i>4th Plymouth</i>   | <i>5/20/2025</i>  |
| <i>Steven George Xiarhos</i>  | <i>5th Barnstable</i> | <i>12/21/2025</i> |

# HOUSE . . . . . No. 3447

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By Representative Ashe of Longmeadow, a petition (accompanied by bill, House, No. 3447) of Brian M. Ashe and Francisco E. Paulino for legislation to include nip bottles and certain other containers in the bottle law. Telecommunications, Utilities and Energy.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE HOUSE, NO. 3684 OF 2023-2024.]

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to containers, litter, ecology and nips (CLEAN Act).

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Section 321 of chapter 94 of the General Laws, as appearing in the 2018  
2   Official Edition, is hereby amended by striking out the definitions of “Beverage” and “Beverage  
3   container” and inserting in place thereof the following 2 definitions:-

4           “Beverage”, soda water or similar carbonated soft drinks, mineral water, beer and other  
5   malt beverages and alcoholic beverages sold in a miniature, but shall not include alcoholic  
6   beverages other than beer and malt beverages as defined in chapter 138 and alcoholic beverages  
7   sold in a miniature, dairy products, natural fruit juices or wine.

8           “Beverage container”, any sealable bottle, can, jar or carton which is primarily composed  
9   of glass, metal, plastic or any combination of those materials and is produced for the purpose of

10 containing a beverage, including a miniature. This definition shall not include containers made of  
11 biodegradable material. The department of environmental protection may adopt regulations to  
12 further define beverage container.

13 SECTION 2. Said section 321 of said chapter 94, as so appearing, is hereby further  
14 amended by inserting after the definition of “Label” the following definition:-

15 “Miniature”, any sealable bottle, can, jar or carton which is primarily composed of glass,  
16 metal, plastic or any combination of those materials that has a capacity of not more than 100  
17 milliliters and is produced for the purpose of containing an alcoholic beverage.

18 SECTION 3. Subsection (c) of section 323 of said chapter 94, as so appearing, is hereby  
19 amended by striking out the words “one cent”, in line 13, and inserting in place thereof the  
20 following figure:- 3 cents.

21 SECTION 4. Subsection (d) of said section 323 of said chapter 94, as so appearing, is  
22 hereby amended by striking out the words “one cent”, in line 20, and inserting in place thereof  
23 the following figure:- 3 cents.

24 SECTION 5. Subsection (e) of said section 323 of said chapter 94, as so appearing, is  
25 hereby amended by striking out the words “one cent”, in line 37, and inserting in place thereof  
26 the following figure:- 3 cents.

27 SECTION 6. Said chapter 94 is hereby amended by inserting after section 323E the  
28 following section:-

29 Section 323F. No political subdivision of the commonwealth shall enact an ordinance or  
30 by-law prohibiting the sale of miniatures; provided, however, that a city or town, which has

31    adopted an ordinance or by-law prohibiting the sale of miniatures pursuant to the authority  
32    conferred upon such city or town by general law or special act prior to the effective date of this  
33    section may continue to exercise such authority, and this section shall not be construed to restrict  
34    the authority of any such city or town to amend or repeal any ordinance or by-law in accordance  
35    with the provisions of such special act.